

COUNTERFACTUAL RECORD — NEVER OCCURRED — NOT FILED ON ANY
ACTUAL DOCKET — ALL IDENTIFIERS ARE FICTIONAL

Counterfactual Clerk Order Releasing Mandate After Stay Denial

Filed: July 17, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

Asterglen moved on June 26, 2026 to stay mandate pending preparation of a certiorari petition. The motion was timely because it preceded the June 29 ordinary issuance date. On July 10, the Court denied affirmative stay relief and directed the clerk to apply Federal Rule of Appellate Procedure 41(b). The seventh calendar day after that denial is today, July 17.

July 17 falls later than June 29 and consequently governs issuance. No rehearing petition was filed in this sequence. The docket contains no granted stay, no later motion affecting the mandate calendar, and no order requiring continued withholding. In accordance with the July 10 direction, the mandate is RELEASED for issuance on July 17, 2026. A separate mandate shall transmit the June 8 opinion and judgment to the United States District Court for the Northern District of West Virginia.

The clerk's release does not rule on whether Asterglen may petition for certiorari, does not alter the dismissal and remand, and does not decide any aspect of Count I. It records only that the later date generated by denial of the timely stay motion has arrived. Counsel for Asterglen, Copper Kestrel, and Meridian Silt shall receive electronic notice of this order and of the mandate entered today.

ENTERED BY THE CLERK